



COLORADO
Air Pollution Control Division
Department of Public Health & Environment

GENERAL CONSTRUCTION PERMIT

Diesel Fuel - Fired

Reciprocating Internal Combustion Engines (RICE)

Permit Number GP06 Issuance 4

Final Approval

July 23, 2025

Bradley Eades, PE

Date Issued

Oil & Gas Permitting Section Supervisor

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I. General Permit Applicability

I.A. This General Permit, GP06, can be used only for a diesel fuel-fired reciprocating internal combustion engine (RICE) that is a stationary source, including a portable unit which meets the following requirements:

I.A.1. It is a true minor or synthetic minor for Operating Permits (OP), Prevention of Significant Deterioration (PSD) or New Source Review (NSR) programs applicability, except as provided for in I.A.5. and I.A.6. below.

I.A.2. It is a true minor or synthetic minor under the provisions of 40 CFR Part 63, National Emission Standards for Hazardous Air Pollutants for Source Categories.

I.A.3. It meets all the requirements in New Source Performance Standard (NSPS) Subpart IIII as applicable to the specific engine, including the standards required for relocating into Colorado as set in Regulation Number 6, Part B, Section I.C.

I.A.4. It meets all of the conditions of Section II.A of this General Permit, GP06.

I.B. Stationary Sources that became subject to Title V Operating Permit requirements or became classified as an existing major stationary source for which a complete GP06 registration request was received by the Division prior to the effective date (January 27, 2020) on which the 8-hour Ozone Control Area was re-classified from moderate to serious may continue to operate under this General Permit. 8-hour Ozone Control Area is as defined in



Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024).

- I.C. Stationary Sources that: a) became subject to Title V Operating Permit requirements or became classified as an existing major stationary source due to the reclassification of the 8-hour Ozone Control Area from serious to severe, and b) for which a complete GP06 registration request was received by the Division prior to the effective date of GP06, Issuance 3, (November 3, 2022), may continue to operate under this General Permit. 8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024).
- I.D. Stationary Sources that: a) became subject to Title V Operating Permit requirements or became classified as an existing major stationary source for which a GP06 registration request was deemed complete by the Division prior to the effective date (July 24, 2024) on which Northern Weld County was reclassified from moderate to serious may continue to operate under this General Permit. Northern Weld County is as defined in Regulation Number 7, Part A, Section II.A.3. (Adopted 12/14/2023, Effective 02/14/2024).
- I.E. The following types of sources may not use this General Permit for diesel fuel fired reciprocating internal combustion engines:
 - I.E.1. Any diesel fuel-fired internal combustion engine that does not meet the requirements of NSPS Subpart IIII as applicable to the specific engine.
 - I.E.2. Newly constructed or modified existing equipment that is part of a project permit action that is subject to Non-Attainment New Source



Review (NA NSR) or Prevention of Significant Deterioration (PSD) permitting under Regulation Number 3, Part D.

- I.F. This General Permit applies only to the equipment as described in Section I.A of this General Permit above for which the operator has obtained approval from the Division for registration under this General Permit, GP06. Other equipment at the same stationary source must be permitted separately as required by Regulation Number 3, Part B.
- I.G. For new or modified registrations deemed complete on or after the effective date of this permit issuance (Issuance 4), the maximum allowable emissions of nitrogen oxides (NO_x), carbon monoxide (CO), and volatile organic compounds (VOC) from all diesel-fueled engines under the GP06 registration that are owned and operated by the same person and co-located at the same stationary source must not exceed the requested Federally-enforceable annual emission limitations (tons per year) as listed on the general permit registration approval letter, or if an approval letter has not been issued, as certified by the owner or operator in the Air Pollutant Emission Notice (APEN) included with the general permit registration APEN (Regulation Number 3, Part B, Sections II.A.4. and II.A.7.)

II. Emission Limitation Requirements

II.A. Facility-Wide Emission Limitation Requirements

- II.A.1. The maximum allowable emissions of criteria air pollutants from all APEN-reportable emissions points at the same stationary source (including those of the engine subject to this general permit) must be Federally Enforceable and must not exceed the following limitations. (Reference: Regulation Number 3, Part B, Section II.A.4). For



facilities located outside the 8-hour Ozone Control Area (8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024)), facility-wide maximum allowable emissions must not exceed:

II.A.1.a. Nitrogen Oxides (NO_x): 90.0 tons per year

II.A.1.b. Carbon Monoxide (CO): 90.0 tons per year

II.A.1.c. Volatile Organic Compounds (VOC): 90.0 tons per year

For sources that are also subject to Condition II.A.6. or II.A.7., the owner or operator must comply with the most stringent limits for each pollutant.

II.A.2. The maximum allowable emissions of criteria air pollutants from all APEN-reportable emissions points at the same stationary source (including those of the engine subject to this permit) shall be Federally Enforceable and must not exceed the following limitations. (Reference: Regulation Number 3, Part B, Section II.A.4). For facilities located in the 8-hour Ozone Control Area (8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024)), for which a complete GP06 registration request is received by the Division prior to the effective date (January 27, 2020) on which that area was re-classified from a moderate to serious and are permitted under the provisions of I.B. above, facility-wide maximum allowable emissions must not exceed:

II.A.2.a. Nitrogen Oxides (NO_x): 90.0 tons per year



II.A.2.b. Carbon Monoxide (CO): 90.0 tons per year

II.A.2.c. Volatile Organic Compounds (VOC): 90.0 tons per year

For sources that are also subject to Condition II.A.6. or II.A.7., the owner or operator must comply with the most stringent limits for each pollutant.

II.A.3. The maximum allowable emissions of criteria air pollutants from all APEN-reportable emissions points at the same stationary source (including those of the engine subject to this permit) shall be Federally Enforceable and must not exceed the following limitations. (Reference: Regulation Number 3, Part B, Section II.A.4). For facilities located in the 8-hour Ozone Control Area (8-hour Ozone Control Area is as defined in Regulation Number 7, Part A, Section II.A.1. (Adopted 12/14/2023, Effective 02/14/2024)), for which a complete GP06 registration request is not received by the Division prior to the effective date (January 27, 2020) on which that area was re-classified from serious to severe, facility- wide maximum allowable emissions must not exceed:

II.A.3.a. Nitrogen Oxides (NO_x): 45.0 tons per year

II.A.3.b. Carbon Monoxide (CO): 90.0 tons per year

II.A.3.c. Volatile Organic Compounds (VOC): 45.0 tons per year



For sources that are also subject to Condition II.A.6. or II.A.7., the owner or operator must comply with the most stringent limits for each pollutant.

- II.A.4. The maximum allowable individual criteria pollutant emissions increase for the project which includes the engine covered by this general permit must be less than the respective criteria air pollutants' significant emission levels as follows:

II.A.4.a. Nitrogen Oxides (NO_x): 40.0 tons per year

- II.A.5. The maximum allowable emissions of hazardous air pollutants (HAPs) from all emissions points at the stationary source are Federally Enforceable and must not exceed the following limitations:
(Reference: Regulation Number 3, Part B, Section II.A.4.

II.A.5.a. Each Individual HAP: 8.0 tons per year

II.A.5.b. Total of all HAPs: 20.0 tons per year

- II.A.6. The owner or operator of facilities located in an area classified as serious nonattainment for ozone, and which are not otherwise subject to Conditions I.B. or I.C. or I.D. of this permit, must track potential emissions from all insignificant activities at the facility on an annual basis to demonstrate compliance with facility emission limitations as indicated below. An inventory of each insignificant activity and associated emission calculations must be made available to the Division for inspection upon request. For the purposes of this condition, insignificant activities are defined as any activity or equipment, which emits any amount of VOC or NO_x but



does not require an APEN or is permit exempt. Note that for reclassifications of an existing nonattainment area to serious, the limit applies upon the effective date of reclassification. (Regulation Number 3, Part B. Section III.E.)

- II.A.6.a. Total point source potential emissions from the facility, including all permitted emissions and potential to emit from all insignificant activities, must be less than:

Volatile Organic Compounds (VOC): 50 tons per year

Nitrogen Oxides (NO_x): 50 tons per year

- II.A.7. The owner or operator of facilities located in an area classified as severe nonattainment for ozone, and which are not otherwise subject to Conditions I.B. or I.C. or I.D. of this permit, must track potential emissions from all insignificant activities at the facility on an annual basis to demonstrate compliance with facility emission limitations as indicated below. An inventory of each insignificant activity and associated emission calculations must be made available to the Division for inspection upon request. For the purposes of this condition, insignificant activities are defined as any activity or equipment, which emits any amount of VOC or NO_x but does not require an APEN or is permit exempt. Note that for reclassifications of an existing nonattainment area to severe, the limit applies upon the effective date of reclassification. (Regulation Number 3, Part B. Section III.E.)



II.A.7.a. Total point source potential emissions from the facility, including all permitted emissions and potential to emit from all insignificant activities, must be less than:

Volatile Organic Compounds (VOC): 25 tons per year

Nitrogen Oxides (NO_x): 25 tons per year

II.B. Emission Limitations Specific to Engines Registered Under this General Permit

II.B.1. The owner/operator must construct and operate this registered engine in accordance with the representations made in the general permit application including, but not limited to, emission factors, nameplate and site-rated horsepower, hours of operation, emissions control measures, requested fuel consumption and other parameters that affect emissions.

III. State and Federal Regulatory Requirements

III.A. The owner or operator must comply with opacity requirements in Regulation Number 1, Section II.A., as applicable per the most current version of Regulation Number 1.

III.B. The engine covered under this general permit is subject to the odor requirements of Regulation Number 2.

III.C. Engines registered to operate in accordance with the provisions of this general permit must comply with the following, existing requirements:

III.C.1. The owner or operator of any stationary diesel or dual-fuel internal combustion engine that is placed in service, modified, or relocated



after January 30, 2024, must achieve or exceed EPA Tier IV standards for NO_x upon placement in service, modification, or relocation. (Regulation Number 26, Part B, Section I.D.6.b.(iii))

III.C.2. The owner or operator of any stationary diesel or dual-fuel internal combustion engine not subject to Section I.D.6.b.(iii) must achieve or exceed EPA Tier IV standards of NO_x in accordance with the timing set forth in Regulation Number 26, Part B, Section I.D.6.b.(vii). (Regulation Number 26, Part B, Section I.D.6.b.(iv))

III.D. Portable Engines covered under this General Permit must comply with the following requirements in addition to other requirements contained in this General Permit. (Reference: Regulation Number 3, Part A, Section II.C.1.f and Part B, Section III.E.

III.D.1. When relocating the engine, the owner or operator must:

III.D.1.a. Submit a Relocation Notice each time this equipment is moved to a new location. The Relocation Notice must be received by the Division at least ten (10) days prior to the change in location.

III.D.1.b. The Relocation Notice must include a facility emission inventory that includes all emission units at the new location. An ambient air quality impact analysis for the site must be submitted with the Relocation Notice for this equipment, if so requested by the Division.



- III.D.1.c. Maintain records of compliance with all additional requirements that are triggered by the relocation. Such requirements may include, but are not limited to:
 - III.D.1.c.(i) State or Federal New Source Performance Standards (NSPS), National Emission Standards for Hazardous Air Pollutants (NESHAP), Maximum Achievable Control Technology (MACT), and Generally Available Control Technology (GACT) requirements; and
 - III.D.1.c.(ii) Major source requirements, including Title V Operating Permit, Nonattainment Area New Source Review (NANSR) and Prevention of Significant Deterioration (PSD) program requirements; and
 - III.D.1.c.(iii) Permitting requirements for sources no longer permit exempt due to the relocation of this unit to the site (i.e. previously APEN required, permit exempt sources).
- III.D.1.d. Keep a record of all relocation notices submitted to the Division.
- III.D.1.e. This unit must not remain at any one site for more than two (2) years. Permittee must keep records of time spent at each site (Reference: Regulation Number 3, Part A, Section I.B.36.). If this unit remains at a site for two years then the permittee must submit a revised APEN requesting a permit as a non-portable stationary source.



III.D.1.e.(i) Note: If this replaces a unit and is intended to perform the same function as the unit being replaced then the cumulative time for both units, including the time between removal of the original unit and installation of the replacement unit, will be counted toward the total time spent at the site.

III.D.1.f. If this source relocates to a site causing the facility to become Title V Operating Permit major (see Regulation Number 3, Part A, Section I.B.25.) or relocates to an existing Title V Permitted source then this source is subject to the provisions of Regulation Number 3, Part C, Operating Permits (Title V of the 1990 Federal Clean Air Act Amendments). The application for the Operating Permit, or modification for inclusion in the existing Operating Permit, is due within one year of the date of relocation to the site.

III.E. NSPS Units:

III.E.1. This engine must comply with the New Source Performance Standards (NSPS) requirements of Regulation Number 6, Part A, Subpart IIII, Standards of Performance for Stationary Compression Ignition Internal Combustion Engines (CI ICE). This includes all the applicable requirements including, but not limited to, the following:

III.E.1.a. All fuel used shall meet the following specifications:

III.E.1.a.(i) Sulfur content shall not exceed 15 ppm.



- III.E.1.a.(ii) Have a minimum cetane index of 40 or have a maximum aromatic compound content of 35% by volume.
- III.E.1.a.(iii) Compliance shall be demonstrated by maintaining copies of the fuel specifications provided by the supplier on-site or in a readily accessible location and made available to the Division for inspection upon request.
- III.E.1.b. The engine and control devices must be installed, configured, operated, and maintained according to the specifications and instructions provided by the engine manufacturer.
- III.E.1.c. If the engine is equipped with a diesel particulate filter, the filter must be installed with a backpressure monitor that notifies the owner or operator when the high backpressure limit of the engine is approached. Records shall be kept of any corrective action taken after the backpressure monitor has notified the owner or operator that the high backpressure limit is approached.
- III.E.1.d. If the engine is used for emergency purposes, a non-resettable hour meter must be installed prior to start-up.
- III.E.1.e. If the diesel fuel-fired engine covered under this general permit avoids tier 4 or 4i requirements by being an emergency generator, the engine shall not be used for any purpose except emergency power generation and for the



purpose of maintenance checks and readiness testing, provided that the tests are recommended by Federal, State or local government, the manufacturer, the vendor, or the insurance company associated with the engine.

Maintenance checks and readiness testing of such units is limited to 100 hours per year. There is no time limit on the use of emergency stationary ICE in emergency situations.

The owner or operator may petition the Administrator for approval of additional hours to be used for maintenance checks and readiness testing, but a petition is not required if the owner or operator maintains records indicating that Federal, State, or local standards require maintenance and testing of emergency ICE beyond 100 hours per year.

Emergency stationary ICE may operate up to 50 hours per year in non-emergency situations, but those 50 hours are counted towards the 100 hours per year provided for maintenance and testing. The 50 hours per year for non-emergency situations cannot be used for peak shaving or to generate income for a facility to supply power to an electric grid or otherwise supply non-emergency power as part of a financial arrangement with another entity. For owners and operators of emergency engines, any operation other than emergency operation, maintenance and testing, and operation in non-emergency situations for 50 hours per year, as permitted in this section, is prohibited.

III.E.2. Emission Standards:



- III.E.2.a. The engine covered under this permit must meet all the emission standards applicable to the engine.
- III.E.2.b. Compliance with the NSPS Subpart IIII Emissions Standards for Non-Methane Hydrocarbons (NMHC), Nitrogen Oxides (NO_x), Carbon Monoxide (CO) and Particulate Matter (PM) must be demonstrated by filing a copy of the unit's certification documentation of compliance with the NSPS Subpart IIII emission standards with the application for this General Permit coverage.
- III.E.3. If the engine is subject to NSPS Subpart IIII, the following requirements of Regulation Number 6, Part A, Subpart A, General Provisions, shall apply as follow:
 - III.E.3.a. At all times, including periods of start-up, shutdown, and malfunction, the engine and control equipment shall, to the extent practicable, be maintained and operated in a manner consistent with good air pollution control practices for minimizing emissions. Determination of whether or not acceptable operating and maintenance procedures are being used will be based on information available to the Division, which may include, but is not limited to, monitoring results, opacity observations, review of operating and maintenance procedures, and inspection of the source. (Reference: Regulation Number 6, Part A. General Provisions from 40 CFR 60.11



- III.E.3.b. No article, machine, equipment or process shall be used to conceal an emission which would otherwise constitute a violation of an applicable standard. Such concealment includes, but is not limited to, the use of gaseous diluents to achieve compliance with an opacity standard or with a standard which is based on the concentration of a pollutant in the gases discharged to the atmosphere. (§ 60.12)
- III.E.3.c. Written notification of construction and initial startup dates shall be submitted to the Division as required under § 60.7.
- III.E.3.d. Records of startups, shutdowns, and malfunctions shall be maintained, as required under § 60.7.
- III.E.4. If the engine covered by this general permit is located in the Denver ozone nonattainment or attainment-maintenance area, it is subject to the Reasonably Available Control Technology (RACT) requirements of Regulation Number 3, Part B, III.D.2.b as follows:
 - III.E.4.a. The requirements of condition numbers III.D.1, III.D.2 and III.D.3 above have been determined to be RACT for the engine.

IV. Recordkeeping and Reporting

- IV.A. Records must be located on-site or at a local field office with stationary source responsibility. Records may be kept in either electronic or hard copy format provided that they can be promptly supplied to the Division upon request.

IV.B. The following records must be maintained for the emission unit while covered by this general permit:

IV.B.1. The current issuance of this general permit.

IV.B.2. The APEN(s) submitted to the Division for each engine covered by this general permit.

IV.B.3. The supporting documents submitted with the application:

IV.B.3.a. The engine's displacement documentation

IV.B.3.b. The engine's horsepower rating documentation

IV.B.3.c. The engine's year of manufacturing documentation, and

IV.B.3.d. The engine's year of locating/relocating into Colorado.

IV.B.4. The general permit registration approval letter.

IV.B.5. The Notice of Startup (NOS) submitted to the Division as required under Section VII.D of this General Permit.

IV.C. The following records must be maintained for a period of five years:

IV.C.1. Records that demonstrate compliance with the emission limits of this permit.

IV.C.1.a. Compliance Time Period

IV.C.1.a.(i) If the stationary source at which the covered engine(s) is located is a true minor source, compliance with the annual emission limits for the



engine(s) must be monitored by calculating and recording the annual emissions from each engine on a calendar year basis.

IV.C.1.a.(ii) If the stationary source at which the engine(s) is located is a synthetic minor source, compliance with the annual emission limits for the engine(s) must be monitored by calculating emissions on a monthly basis and recording the annual emissions from each engine on a rolling twelve (12) month total. By the end of each month a new twelve- month total is calculated based on the previous twelve months' emissions data. During the first year of operation, compliance must be based upon cumulative emissions from all months of operation.

IV.C.1.b. Emissions from diesel fuel-fired engines covered by this General Permit must be calculated using the methodologies listed in this Subsection IV.C.1.b. (i) & (ii) of this General Permit. The same emission factors (EF), site rated horsepower (HP), design rate (FuelRate), hours of operation (RunTime) or Fuel Usage (FuelUsage) and lower fuel heat value (LHV) as specified in the most recent registration approved by the Division must be used in the calculations. Equations Eq. 1, Eq. 2, Eq. 3, Eq. 4 and Eq. 5 represent annual calculations and should be adjusted using the appropriate time period (monthly or annual) as required by this Subsection IV.C.1.a of this General Permit above.



IV.C.1.b.(i) Emission estimates based upon hours of operation must be calculated using either Eq. 1 with the appropriate emission factor:

$$\text{Eq. 1.a. } \text{Emission} \left(\frac{\text{ton}}{\text{year}} \right) = EF \left(\frac{X \text{ lb}}{10^6 \text{ Btu}} \right) * LHV \left(\frac{\text{btu}}{\text{gal}} \right) * \text{RunTime} \left(\frac{\text{hrs}}{\text{yr}} \right) * \text{FuelUsage} \left(\frac{\text{gal}}{\text{hr}} \right) * \left(\frac{1 \text{ ton}}{2000 \text{ lb}} \right)$$

$$\text{Eq. 1.b. } \text{Emission} \left(\frac{\text{ton}}{\text{year}} \right) = EF \left(\frac{X \text{ lb}}{\text{HP-hr}} \right) * HP \left(\frac{\text{hp}}{1} \right) * \text{RunTime} \left(\frac{\text{hrs}}{\text{yr}} \right) * \left(\frac{1 \text{ ton}}{2000 \text{ lb}} \right)$$

$$\text{Eq. 1.c } \text{Emission} \left(\frac{\text{ton}}{\text{year}} \right) = EF \left(\frac{X \text{ g}}{\text{HP-hr}} \right) * HP \left(\frac{\text{hp}}{1} \right) \left(\frac{0.0022 \text{ lb}}{\text{g}} \right) * \text{RunTime} \left(\frac{\text{hr}}{\text{yr}} \right) * \left(\frac{1 \text{ ton}}{2000 \text{ lb}} \right)$$

$$\text{Eq. 1.d } \text{Emission} \left(\frac{\text{ton}}{\text{year}} \right) = EF \left(\frac{X \text{ lb}}{1000 \text{ gal}} \right) * \text{RunTime} \left(\frac{\text{hr}}{\text{yr}} \right) * \text{FuelRate} \left(\frac{\text{gal}}{\text{hr}} \right) * \left(\frac{1 \text{ ton}}{2000 \text{ lb}} \right)$$

$$\text{Eq. 1.e } \text{Emission} \left(\frac{\text{ton}}{\text{year}} \right) = EF \left(\frac{X \text{ g}}{\text{kw-hr}} \right) \left(\frac{\text{kw-hr}}{1.341 \text{ hp-hr}} \right) \left(\frac{\text{HP}}{1} \right) \left(\frac{0.0022 \text{ lb}}{\text{g}} \right) * \text{RunTime} \left(\frac{\text{hr}}{\text{yr}} \right) \left(\frac{1 \text{ ton}}{2000 \text{ lb}} \right)$$

IV.C.1.b.(ii) Emission estimates based upon fuel consumption must be calculated using either Eq. 2 with the appropriate emission factor:



$$\text{Eq. 2.a. } \textit{Emission} \left(\frac{\text{ton}}{\text{year}} \right) = EF \left(\frac{X \text{ lb}}{10^6 \text{ Btu}} \right) * LHV \left(\frac{\text{btu}}{\text{gal}} \right) * \textit{FuelUsage} \left(\frac{\text{gal}}{\text{yr}} \right) * \left(\frac{1 \text{ ton}}{2000 \text{ lb}} \right)$$

$$\text{Eq. 2.b. } \textit{Emission} \left(\frac{\text{ton}}{\text{year}} \right) = EF \left(\frac{X \text{ lb}}{\text{HP-hr}} \right) * HP \left(\frac{\text{hp}}{1} \right) * \textit{FuelUsage} \left(\frac{\text{gal}}{\text{yr}} \right) * \frac{1}{\textit{FuelRate}} \left(\frac{\text{hr}}{\text{gal}} \right) * \left(\frac{1 \text{ ton}}{2000 \text{ lb}} \right)$$

$$\text{Eq. 2.c. } \textit{Emission} \left(\frac{\text{ton}}{\text{year}} \right) = EF \left(\frac{X \text{ g}}{\text{HP-hr}} \right) * HP \left(\frac{\text{hp}}{1} \right) \left(\frac{0.0022 \text{ lb}}{\text{g}} \right) * \textit{FuelUsage} \left(\frac{\text{gal}}{\text{yr}} \right) * \frac{1}{\textit{FuelRate}} \left(\frac{\text{hr}}{\text{gal}} \right) * \left(\frac{1 \text{ ton}}{2000 \text{ lb}} \right)$$

$$\text{Eq. 2.d. } \textit{Emission} \left(\frac{\text{ton}}{\text{year}} \right) = EF \left(\frac{X \text{ lb}}{1000 \text{ gal}} \right) * \textit{FuelUsage} \left(\frac{\text{gal}}{\text{yr}} \right) * \left(\frac{1 \text{ ton}}{2000 \text{ lb}} \right)$$

$$\text{Eq. 2.e. } \textit{Emission} \left(\frac{\text{ton}}{\text{year}} \right) = EF \left(\frac{X \text{ g}}{\text{kw-hr}} \right) * \left(\frac{\text{kw-hr}}{1.341 \text{ hp-hr}} \right) * HP \left(\frac{\text{hp}}{1} \right) \left(\frac{0.0022 \text{ lb}}{\text{g}} \right) * \textit{FuelUsage} \left(\frac{\text{gal}}{\text{yr}} \right) * \frac{1}{\textit{FuelRate}} \left(\frac{\text{hr}}{\text{gal}} \right) * \left(\frac{1 \text{ ton}}{2000 \text{ lb}} \right)$$

IV.C.2. Records of the hours of operation and fuel consumption for each engine covered by this General Permit must be recorded and made available to the Division upon request. Records must be for the same time period (monthly or annual) as determined by Subsection IV.C.1.a. of this General Permit for the emission calculations.

IV.C.3. An alternative operating scenario (AOS) modification log containing all details required by any AOS in this permit. (Reference: Regulation Number 3, Part A, Section IV.A.1.)

IV.C.4. Records that demonstrate compliance with the facility-wide emission limit requirements that facilities must meet in order to qualify for use of this General Permit as set forth in Section II.A of this General Permit.

IV.C.5. Results of initial compliance and periodic performance testing required by Sections V and VI of this General Permit below.

IV.C.6. Operating and maintenance records required by Section VI of this General Permit below.

IV.D. On or before June 30th of each calendar year, the owner or operator of oil and natural gas operations and equipment at or upstream of a natural gas processing plant or class II disposal well facilities in Colorado must submit a single annual report that includes actual emissions and specified information in the Division-approved report format. The information included in the annual report must be in accordance with the general reporting requirements of Regulation Number 7, Part B, Section V.B. Each calendar year, owners or operators must maintain the information according to Regulation Number 7, Part B, Section V.C. for inclusion in the annual report. (Reference: Regulation Number 7, Part B, Section V).

V. Compliance Testing and Sampling

V.A. Initial Testing Requirements

V.A.1. Within 180 days of startup of the engine, the owner or operator of the engines covered by this General Permit must demonstrate compliance with Section III.A of this General Permit above, using EPA Method 9 to measure opacity from the engine covered by this general permit. This measurement must consist of a minimum twenty-four consecutive readings taken at fifteen second intervals over a 6-minute period. (Reference: Regulation Number 1, Section II.A.1)

VI. Operating and Maintenance Requirements

- VI.A. Whenever the engines covered by this permit are located at facility that is a synthetic minor or major source, the permittee must follow the Recordkeeping / Operating and Maintenance (O&M) plans specified in Section IV above.
(Reference: Regulation Number 3, Part B, Section III.I.6.)
- VI.B. The engines covered by this general permit that are true minor and are located at a true minor facility are not required to follow a Division-approved operating and maintenance plan. The operating and maintenance plan provided by the manufacturer must be followed for this source.
- VI.C. Engine Operating and Maintenance (O&M) Plan
- VI.C.1. This Section VI applies only to engines covered by this General Permit that are synthetic minor or major itself or are located at a stationary source that is synthetic minor or major for NO_x, CO, or VOC.
- VI.C.2. These general requirements apply to all subparts of Section VI.
- VI.C.2.a. Each engine and associated emission control device, if applicable, must be maintained and operated according to the manufacturer's scheduled maintenance guide or equivalent. A company may establish its own equivalent maintenance schedule providing it achieves efficient engine operation and meets or exceeds the performance standards of this permit.
- VI.C.2.b. A copy of maintenance schedules must be kept.
- VI.C.2.c. Records indicating the date and description of maintenance must be kept



VI.C.2.d. If maintenance activities or actions are dependent upon hours of operation, then engine operating hours must be tracked and recorded. If a method other than hours of operation is used, then the tracking method must be recorded.

VI.C.3. The owner or operator must develop an operating and maintenance (O&M) plan, along with a recordkeeping format, that outlines how the applicant will maintain compliance on an ongoing basis with the requirements of this General Permit. **Compliance with the O&M plan must commence at startup.**

VII. Monitoring Requirements for Facilities located in Disproportionately Impacted (DI) Communities

VII.A. Owners or operators of new or modified sources located in Disproportionately Impacted Communities must submit a notification at the time of registration for a general permit or permits issued pursuant to Regulation Number 3, Part B, Section III.I. indicating the source will comply with the monitoring requirements outlined in Regulation Number 3, Part B, Section III.J., as applicable, by either:

VII.A.1. Complying with source-specific monitoring pursuant to Section III.J.2. of Part B;

VII.A.2. Paying community monitoring fees pursuant to Section III.J.3. of Part B; or

VII.A.3. Complying with well production facility monitoring pursuant to Section III.J.4. of Part B.



Owners or operators must comply with the monitoring methodology selected on the general permit registration form.

- VII.B. Owners or operators subject to VII.A.1 must submit a Division-approved source-specific monitoring plan as part of a complete registration request. (Regulation Number 3, Part B, III.E.)

VIII. General Permit Registration Approval Process

- VIII.A. Conditional certification of a registration under this general permit is effective from the date the registration is deemed complete as indicated in Condition VIII.B. A complete registration request consists of all General Permit application materials required by the Division and associated fees. The owner or operator may commence construction and operation of the engine as represented in the registration once the registration is deemed complete. In the event the engine(s) does not qualify for registration under the general permit the owner or operator accepts the liability of commencing these activities.
- VIII.B. The Division will determine completeness of the General Permit registration request within sixty (60) days of the date of receipt of the request and provide written notification to the applicant. If the applicant does not receive notification of a completeness determination from the Division within sixty (60) days, the General Permit registration request will be deemed complete for the purpose of Conditions VIII.A. and VIII.B.
- VIII.C. The Division has ninety (90) calendar days from the date the Division receives a complete General Permit registration request to provide the applicant with a written approval or denial of the registration.

VIII.D. The owner or operator must submit a Notice of Startup (NOS) within fifteen (15) calendar days after the commencement of operation of the engine(s) registered to this general permit. The NOS must be submitted using the Division's online submission tool on the Division's self-certification webpage at <https://cdphe.colorado.gov/apens-and-air-permits/air-permit-self-certification>.

IX. General Terms and Conditions

- IX.A. A facility that is classified as a major source for Title V Operating Permit requirements and is operating under Condition I.B. or I.C. must submit a Title V application requesting to incorporate the terms of this general permit into a Title V Operating Permit. The due date for this application is one year from the date on which the facility becomes subject to Title V Operating Permit requirements.
- IX.B. In accordance with Colorado Regulation Number 3, Part C, Section V.C.5, some or all of the monitoring specified in this general permit will be incorporated as specific conditions in the source's Title V Operating Permit (if applicable). Additional monitoring not listed in this general permit may be included in the source's Operating Permit in order to satisfy the periodic monitoring requirements of Section V.C.5.b.
- IX.C. The General Permit number, GP06 and the AIRS ID number must be marked on the subject engine covered under this General Permit for ease of identification. (Reference: Regulation Number 3, Part B, III.E.)
- IX.D. A Revised APEN shall be filed: (Reference: Regulation Number 3, Part A, Section II.C.)

IX.D.1. Annually whenever a significant increase in emissions occurs as follows:

- IX.D.1.a. For sources emitting any criteria pollutant **less than 100 tons per year**, a change in actual emissions of five tons per year or more, above the level reported on the last APEN submitted; or
- IX.D.1.b. For volatile organic compounds (VOC) and nitrogen oxide (NO_x) sources in an ozone non-attainment area emitting **less than 100 tons of VOC or nitrogen oxide per year**, a change in actual emissions of one ton per year or more or five percent, whichever is greater, above the level reported on the last APEN submitted; or
- IX.D.1.c. For sources emitting **100 tons per year or more of a criteria pollutant**, a change in actual emissions of five percent or 50 tons per year or more, whichever is less, above the level reported on the last APEN submitted; or
- IX.D.1.d. For sources emitting **any amount of lead**, a change in actual emissions, above the level reported on the last APEN submitted, of fifty (50) pounds of lead
- IX.D.1.e. If the emissions of any non-criteria reportable pollutant increase by 50% or five (5) tons per year, whichever is less, above the level reported on the last APEN submitted to the Division.



- IX.D.1.f. Whenever there is a change in the owner or operator of any facility, process, or activity; or
 - IX.D.1.g. Whenever new control equipment is installed, or whenever a different type of control equipment replaces an existing type of control equipment; or
 - IX.D.1.h. Whenever a permit limitation must be modified; or
 - IX.D.1.i. No later than 30 days before the existing APEN expires.
- IX.D.2. Certain requirements of Regulation Number 3, Part D shall apply at such time that any stationary source or modification becomes a major stationary source or major modification solely by virtue of a relaxation in any enforceable limitation that was established after August 7, 1980 on the capacity of the source or modification to otherwise emit a pollutant, such as a restriction on hours of operation. (Reference: Regulation Number 3, Part D, Section V.A.7.b. and VI.B.4.)
- IX.D.3. This stationary source may be able to utilize the Affirmative Defense Provision for Excess Emissions During Malfunctions contained in Common Provisions Regulation Part II, Subpart E. The owner or operator must notify the Division of any malfunction condition which causes a violation of any emission limit or limits stated in this permit as soon as possible, but no later than noon of the next working day, followed by written notice to the Division addressing all of the criteria set forth in Section II.E.1 of the Common Provisions Regulation.



- IX.D.4. This permit is granted subject to all rules and regulations of the Colorado Air Quality Control Commission and the Colorado Air Pollution Prevention and Control Act C.R.S., sections 25-7-101, et seq, to those general and specific terms and conditions included in this document.
- IX.D.5. Unless specifically stated otherwise, the general and specific conditions contained in this permit have been determined by the Division to be necessary to assure compliance with the provisions of Section 25-7- 114.5(7)(a), C.R.S.
- IX.D.6. Each and every condition of this permit is a material part hereof and is not severable. Any challenge to or appeal of a condition herein by the permittee will constitute a rejection of the entire permit and upon such occurrence, this permit shall be deemed denied ab initio.
- IX.D.7. Section 25-7-114.7(2)(a), C.R.S. requires that all stationary sources required to file an APEN must pay an annual fee to cover the costs of inspections and administration.
- IX.D.8. Violation of the terms of a permit or of the provisions of the Colorado Air Pollution Prevention and Control Act or the regulations of the AQCC may result in administrative, civil or criminal enforcement actions under Sections 25-7-115 (enforcement), -121 (injunctions), -122 (civil penalties), -122.1 (criminal penalties), C.R.S.
- IX.D.9. Registration under this permit is approved in reliance upon the accuracy and completeness of information supplied by the permittee and is conditioned upon operation of the stationary source, in accordance with this information and with representations made by

the permittee or permittee's agents. It is valid only for the equipment and operations or activity specifically identified on the general permit registration.

- IX.D.10. All terms and conditions of this permit that apply to the equipment covered by this permit must be considered Applicable Requirements for the purposes of any future permit issued for the engine(s).
(Reference: Regulation Number 3, Part A, Section I.B.9.a.)

IX.E. Registration Revision / Termination

- IX.E.1. The Division may deny or revoke registration under the general permit under the circumstances specified in Regulation Number 3, Part B, Section III.I.3.c. and require the owner or operator to apply for an individual permit as required by Regulation Number 3, Part B.
- IX.E.2. A registration under this general permit may be reissued to a new owner or in a new company name by the Division as provided in Regulation Number 3, Part B, Section II.B upon request for transfer of ownership or company name change and the submittal of a revised APEN, revised general permit registration and the required fees.
- IX.E.3. Registration under this general permit is voluntary. The owner or operator may withdraw or cancel a registration under this general permit at any time by notifying the Division in writing and applying for an individual permit as required by Regulation Number 3, Part B.
- IX.F. The owner or operator must follow the Recordkeeping/Operating and Maintenance plans specified in Sections IV and VI of this General Permit above.
(Reference: Regulation Number 3, Part B, Section III.I.6.)



IX.G. General:

- IX.G.1. This general permit remains in effect until revised or terminated by the Division in accordance with the provisions of Regulation Number 3.
- IX.G.2. After public notice and comment as provided by Regulation Number 3, Part B, Section III.I.7., the Division may revise this general permit in order to add or delete requirements or limitations to the permit. This public notice shall be conducted in a manner consistent with the provisions of Regulation Number 3, Part B, Section III.C.4.
- IX.G.3. If the Division revises this general permit, it will provide written notice to affected permittees prior to the revision of the general permit. The notice will advise permittees that any existing registration to use the general permit will be automatically converted to a registration to use the revised general permit, and the owner or operator is subject to requirements of the revised general permit. Persons not wishing to continue coverage under the revised general permit shall have the option of applying for an individual permit as required by Regulation Number 3, Part B.
- IX.G.4. If the Division terminates this general permit, it will provide written notice to affected permittees prior to the termination of the general permit. The notice will advise permittees that they must apply for an individual permit as required by Regulation Number 3, Part B.
- IX.G.5. The Division may require any source authorized by a general construction permit to apply for and obtain an individual permit if circumstances have changed since the time of the original general

permit application so that the source is no longer appropriately controlled and/or permitted under the general construction permit.
(Reference: Regulation Number 3, Part B, Section III.1.3.c.(i)(B))

X. Engine Alternative Operating Scenarios (AOS)

X.A. Provided that the applicability requirements of Section I and emission limits set forth in Section II are still met, the permittee may invoke an AOS for the following modifications to an existing engine registered under the general permit without modifying the general permit registration.

X.A.1. An existing registered engine may be temporarily replaced with a different or like-kind engine in accordance with the most recent version of PS Memo 11-04 for “Stationary Compression Ignition (CI) Internal Combustion Engine (ICE) AOS”.

X.A.1.a. A temporary replacement is defined in this permit as in the same service for 270 operating days or less in any 12-month period. The 270 days is the total number of days that the equipment is in operation. If the equipment operates only part of a day, that day counts towards the 270-day total.

X.A.2. Routine maintenance, repair, or like-kind replacement of control equipment

X.A.3. Addition of a control device where the operator will not claim Federally enforceable credit for the emission reductions achieved.

X.B. A like-kind replacement is defined as replacing a piece of equipment with the same make, model, and design capacity as the original piece of equipment.

- X.C. Modified or replacement equipment are subject to all requirements set forth in this permit including, but not limited to, recordkeeping and operation and maintenance plans.
- X.D. Modifications allowed under an AOS in this permit do not require a revised APEN or registration to be submitted.
- X.E. An AOS otherwise allowed by this general permit may not be used if the modification will result in a facility classification change from true minor to synthetic minor. In this case, a revised registration request must be submitted for review.
- X.F. The permittee must maintain a log to contemporaneously record a description of all modifications made under the provisions of this AOS. Information recorded for temporary engine replacements must include: the start and stop date of any engine replacement, the manufacturer, model number, serial number, and design rating of both the engine replaced and the replacement engine. Records for emission control equipment additions must include the date of installation of new emissions control equipment. (Regulation Number 3, Part A, Section IV.A.1.)

Permit History

Issuance	Date	Description
Issuance 1	November 20, 2013	Issued to diesel fuel-fired reciprocating internal combustion engines covered by this General Permit, GP06.



Issuance	Date	Description
Issuance 2	January 24, 2020	Revised to address the Denver ozone nonattainment area re-classification from moderate to serious. Update the AOS Section of the permit.
Issuance 3	November 3, 2022	Revised to address the 8-hour Ozone Control Area re-classification from serious to severe for existing registrations.
Issuance 4	This Issuance	Revised to address: • Revised to address Northern Weld County Area re-classification from moderate to serious for existing registrations. • Updating Conditions II.A.1. through II.A.4. • Removal of Condition II.A.4.: NOx project threshold • Addition of Insignificant tracking condition



Issuance	Date	Description
		• Addition of Regulation Number 26, Part B engine requirements • Updated Condition VII.A. for clarity